

The Court's entry of judgment dismissing the action after sustaining the demurrer and granting motion to strike, without leave to amend, divested the Court's jurisdiction to rule on the motion. (*Safeco Ins. Co. of Illinois v. Architectural Facades Unlimited, Inc.* (2005) 134 Cal.App.4th 1477, 1482 ["It is well settled that entry of judgment divests the trial court of authority to rule on a motion for reconsideration"]; *California Dental Association v. California Dental Hygienists' Association* (1990) 222 Cal.App.3d 49, 59 ["an order of dismissal following sustaining of a demurrer without leave to amend ... is a judgment...."].) "When such an order is regularly made the trial court has no power to correct it or set it aside" and "reviewable only on appeal." (*Harris v. Board of Ed. Of City and County of San Francisco* (1957) 152 Cal.App.2d 677, 680; *Daar v. Yellow Cab Co.* (1967) Cal.2d 695, 699.)

Although a judgment entered where the trial court lacked jurisdiction is void and may be vacated by the Court at any time (Code Civ. Proc., § 473(d)), Plaintiffs present no evidence to show that the Court's judgment of dismissal was not regularly made and must be vacated on such ground. Code of Civil Procedure section 437, subdivision (d) provides that "[t]he court may ... on motion of either party after notice to the other party set aside any void judgment or order." (Code Civ. Proc., § 473(d).) Here, in support of their jurisdictional attack, Plaintiffs have not presented any competent evidence of BONY's lack of capacity as a proper party to appear on behalf of the holder's of the securitized trust; they only present assertions. Here, the TAC improperly named the holders of the securitized trust where "a trust is simply a collection of assets held for the benefit of designated beneficiaries" and therefore has no ability to sue or be sued, or otherwise act independently from a trustee. (*Dupree v. CIT Bank* (2023) 92 Cal.App.5th 142, 157.) "In order for a civil action to be prosecuted, there must be some existing entity aimed at by the processes of the law, and against whom the court's judgment will operate." (*Tanner v. Estate of Best* (1940) 40 Cal.App.2d 442, 445.) Despite the defect in naming the party, BONY voluntarily appeared in its proper name to defend the action on behalf of erroneously named Defendant. " 'A party may appear though he is not named in the complaint' " and submit to the jurisdiction of the Court. (*Fireman's Fund Ins. Co. v. Sparks Construction, Inc.* (2004) 114 Cal.App.4th 1135, 1146.)

2.

CASE #	CASE NAME	HEARING NAME
CVRI2507032	LEE VS BUCKNER HEAVYLIFT CRANES	MOTION TO SET ASIDE DEFAULT ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT OF ROBERT ROY LEE BY BUCKNER HEAVYLIFT CRANES

Tentative Ruling: Defendant's UNOPPOSED Motion to Set Aside Entry of Default and Default Judgment is granted.

Order to Show Cause is set for 9/23/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to file request for entry of default of ALL defendants on complaint pursuant to CRC 3.110(g) as to PLAINTIFF AND ANTHONY MODARELLI.

FACTUAL TIMELINE

Based on the evidence presented in the declarations of Stephan Choo and Paul P. Burghardt, the following timeline is established:

- December 15, 2025: Plaintiff Robert Roy Lee filed the Complaint alleging negligence and negligent hiring, supervision, and retention.
- January 22, 2026: Plaintiff purportedly served the Summons and Complaint on Defendant via personal service.
- April 8, 2026: Plaintiff filed a Proof of Service for a Statement of Damages. Defendant asserts this was its first actual notice of the lawsuit.
- April 29, 2026: Plaintiff filed a Request for Entry of Default.

- May 5, 2026: Defendant's General Counsel, Paul Burghardt, emailed Plaintiff's counsel explaining the lack of notice and requesting a stipulation to set aside the default.
- May 13, 2026: Defendant formally retained Ropers Majeski PC as counsel.
- May 15–27, 2026: Defense counsel made multiple attempts via email and telephone to stipulate to set aside the default.
- May 27, 2026: Plaintiff's counsel responded, refusing to stipulate to set aside the default.
- June 2, 2026: Defendant filed the present Motion to Set Aside Default

The Court finds that Defendant has met its burden under Code of Civil Procedure section 473.5, which allows relief when service has not resulted in "actual notice to a party in time to defend the action." CCP § 473.5(a) provides: "When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action." (CCP § 473.5(a).) "This section is designed to provide relief where there has been *proper* service of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend." (Weil & Brown, *Civil Procedure Before Trial* (The Rutter Group 2022) ¶ 5:420, p. 5-1222 [italics in original]. Defendant provided sworn testimony that it has no internal records of being served in January 2026 and only became aware of the litigation upon receipt of the Statement of Damages in April 2026. (Burghart Decl. ¶¶ 2-3).

The evidence indicates that Defendant's lack of notice was not caused by avoidance of service or inexcusable neglect. Defendant was not avoiding service, as evidenced by its successful receipt of later documents at its registered agent. Defendant acted promptly and proactively to resolve the default once actual notice was acquired.

The Court further notes that Plaintiff has filed no opposition to this motion. Under California law, a failure to oppose may be considered by the Court as an admission that the motion is meritorious. *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20. By failing to brief the issue, any arguments against setting aside the default are deemed abandoned. *Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20. By failing to brief the issue, any arguments against setting aside the default are deemed abandoned.

California law strongly favors adjudicating controversies on their merits rather than by default. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547. Because Defendant moved promptly for relief and there is no showing of prejudice to the Plaintiff, "very slight evidence" is required to justify setting aside the default.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2602366	HAYDEN VS WAL-MART ASSOCIATES	DEMURRER ON COMPLAINT FOR OTHER EMPLOYMENT OF ROBERT HAYDEN BY WAL-MART ASSOCIATES, WAL-MART

Tentative Ruling: Defendants Wal-Mart Associates, Inc. and Walmart, Inc.'s demurrer to the seventh, sixteenth, and eighteenth causes of action is overruled; as to the fourth, fifth, eighth, ninth, eleventh, twelfth, thirteenth, fourteenth, and fifteenth causes of action, it is sustained with leave to amend within 20 days.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of Univ. of Cal.* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded and of facts which may be inferred from those expressly pleaded. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer, however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)